

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katherine Matejcek	Team: Squad #07	CCRB Case #: 201708448	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 10/07/2017 9:15 PM	Location of Incident: Harlem River Drive and West 155th Street	18 Mo. SOL 4/7/2019	Precinct: 32		
Date/Time CV Reported Sat, 10/07/2017 10:10 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/12/2017 11:15 AM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Delano Nosworthy	26710	939122	HWY 01		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POF Margarita Negron	00791	949385	HWY 01		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Delano Nosworthy	Abuse: Police Officer Delano Nosworthy drew his gun.			A . Exonerated	
B . POM Delano Nosworthy	Discourtesy: Police Officer Delano Nosworthy acted discourteously toward § 87(2)(b)			B . Unsubstantiated	

Case Summary

On October 7, 2017, § 87(2)(b) filed this complaint via phone with IAB [01 Board Review]. It was received at the CCRB on October 12, 2017.

At approximately 9:15 p.m. on October 7, 2017, § 87(2)(b) was driving with his grandfather, § 87(2)(b) on Harlem River Drive and West 155th Street in Manhattan when his vehicle was stopped by PO Delano Nosworthy and PO Margarita Negrón of Highway Patrol. PO Nosworthy allegedly drew his gun as he approached § 87(2)(b)'s vehicle (**Allegation A: Abuse of Authority, exonerated**). After obtaining his information and issuing him summonses, PO Nosworthy allegedly tossed § 87(2)(b)'s documents through the driver's side window of his vehicle (**Allegation B: Discourtesy, unsubstantiated**). § 87(2)(b) was issued six summonses: three for tinted windows, one for failure to signal a lane change, one for making an unsafe lane change, and one for speeding [02 Board Review]. Cell phone camera video of this incident was provided to IAB by § 87(2)(b) [07 Board Review]. It does not show the alleged misconduct.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Delano Nosworthy drew his gun.

§ 87(2)(b) was driving near Harlem River Drive and West 125th Street when another vehicle began swerving towards him. § 87(2)(b) called 911 to report the issue and the dispatcher advised him to get the attention of any police officers he saw on the road. At Harlem River Drive and West 135th Street, § 87(2)(b) noticed a marked sedan containing PO Nosworthy and PO Negrón and flashed his lights at them. At first, the officers did not appear to notice him, but by the time they reached Harlem River Drive and West 155th Street, they turned their lights and sirens on and pulled § 87(2)(b) over just past the 155th Street exit. § 87(2)(b) testified that he pulled over immediately and did not make any sudden movements after stopping his vehicle. The officers parked approximately 10 feet behind § 87(2)(b)'s vehicle and PO Nosworthy exited his vehicle and walked towards § 87(2)(b)'s. As § 87(2)(b) watched from his side view mirror, he saw PO Nosworthy fully draw his gun and hold it just above its holster. PO Nosworthy told § 87(2)(b) to put his hands on the steering wheel and he immediately complied. PO Nosworthy then returned his gun to its holster [08 Board Review].

§ 87(2)(b) was seated in the front passenger seat of his grandson's vehicle at the time. He never saw PO Nosworthy draw his gun during this incident [09 Board Review].

PO Nosworthy testified that he first noticed § 87(2)(b)'s vehicle when his radar alerted him that it was speeding. § 87(2)(b) passed PO Nosworthy while swerving, cutting off other vehicles, and making lane changes without a turn signal. PO Nosworthy turned on his lights and sirens and stopped § 87(2)(b)'s vehicle without incident. He did not run § 87(2)(b)'s license plate before stopping him and had no prior knowledge of § 87(2)(b) or his vehicle. Before approaching, he did not suspect that § 87(2)(b) had committed any crimes or violations other than the VTL violations he was later issued summonses for. However, he noted that the vehicle's windows were excessively tinted, so much so that he could not see what the driver of the vehicle was doing. Based on the tinted windows and erratic driving, PO Nosworthy

was concerned for his safety as he approached the driver's side of the vehicle. He dealt with this safety concern by approaching slowly at a wide angle. He stated that he may have drawn his gun as he approached, but did not specifically recall doing so. He explained that he occasionally draws his gun while making vehicle stops when there is some issue causing him to fear for his safety. PO Nosworthy stated that, once he got closer to § 87(2)(b)'s open driver's side window, he did not see anything else that caused him to fear for his safety. Had he drawn his gun, he would have holstered it at that time [10 Board Review].

PO Negron testified that she had the same safety concerns as PO Nosworthy when the officers first approached § 87(2)(b)'s vehicle. As PO Nosworthy approached the driver's side, PO Negron approached the front passenger's side. She did not see PO Nosworthy draw his gun, never learned that he had done so, and never heard any civilian complain that this had occurred [11 Board Review].

New York courts have routinely held that police officers may display their guns during the course of a vehicle stop as a protective measure and safety response, even in the instance of traffic infractions. People v. Livigni, 88 A.D.2d 386 [06 Board Review].

§ 87(2)(g)
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§ 87(2)(g). It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation B – Discourtesy: Police Officer Delano Nosworthy acted discourteously towards

§ 87(2)(b)

§ 87(2)(b) provided PO Nosworthy with his license and registration and PO Nosworthy returned to his vehicle with the documents. PO Nosworthy approached § 87(2)(b)'s open driver's side window. § 87(2)(b) asked "Where's my license?" and PO Nosworthy allegedly removed his license and registration from his pocket, said "Here," and tossed them through the window onto § 87(2)(b)'s lap. § 87(2)(b) stated that he never refused to accept these documents before PO Nosworthy threw them [08 Board Review].

§ 87(2)(b) testified that PO Nosworthy requested § 87(2)(b)'s license and, while standing next to the driver's side window, wrote § 87(2)(b) his six summonses. He did not return to his vehicle. After spending several minutes writing the summonses, he allegedly tossed § 87(2)(b)'s license, along with the summonses, through the window and onto his lap and walked away without saying anything else [09 Board Review].

PO Nosworthy stated that § 87(2)(b) voluntarily accepted his summonses and documents without any issues. There was never a point when § 87(2)(b) refused to accept these items. PO Nosworthy denied tossing the items through § 87(2)(b)'s window and stated that no civilian complained that he did so. [10 Board Review]

PO Negron was standing outside the front passenger's side window when PO Nosworthy gave § 87(2)(b) his summonses. Her testimony was consistent with PO Nosworthy's; she also stated that PO Nosworthy did not throw § 87(2)(b)'s license and registration through his window [11 Board Review].

§ 87(2)(g)

_____, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) [05 Board Review].
- PO Nosworthy has been a member of the NYPD for 12 years. This is the fifth CCRB complaint filed against him. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- As of November 27, 2017, no Notice of Claim had been filed for this incident [03 Board Review].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 7

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date